

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

QVC, INC. AND CORNERSTONE BRANDS, INC., *Complainants*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-09

Serviced: September 15, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

SCHEDULING ORDER

On August 29, 2025, the parties filed a joint status report and proposed discovery schedule that exceeded limitations in the applicable regulation but did not provide a detailed explanation to support granting an extension. (Dkt. 15.) On September 3, 2025, the Order on Proposed Scheduling Order was served, which directed the parties to submit an amended proposed scheduling order that provides for the completion of discovery within the 150-day deadline. (Dkt. 16.) The order also provided that the parties may propose an extension of the deadline beyond 150 days if they contend that additional time is necessary to fully develop the record but required them to provide sufficient details to justify the request. On September 12, 2025, the parties filed their Amended Joint Proposed Scheduling Order.

Pursuant to 46 C.F.R. § 502.141(g), discovery must be completed within 150 days of the service of the answer on August 14, 2025, that is no later than January 11, 2026. (Dkt. 14.) The amended discovery schedule proposed by the parties complies with this requirement, is reasonable, and has been adopted in substantial part.¹ The parties state in their status report that they anticipate needing more than 150 days to complete discovery in order to fully develop the record given the number of witnesses to be deposed and documents to be exchanged. The parties further state that they will be able to make an informed assessment about the need for additional time once discovery has commenced and intend to file a motion seeking extension of the applicable deadlines at a later date.

Based on the parties' preliminary assessment that they will ultimately need additional time for discovery and anticipate filing a motion to extend the applicable deadlines, a status

¹ The amended proposed scheduling order contains a typographical year error but appears to have intended to propose a deadline for completion of discovery on Monday January 12, 2026, which complies with the applicable regulation given that the January 11, 2026, deadline falls on a Sunday. Fed. R. Civ. P. 6(a)(2)(C); 46 C.F.R. § 502.12. Complainant's proposed reply brief deadline has been shortened to two weeks after Respondent's opposition brief as is customary, but may be extended upon a showing of good cause. The proposed deadlines of November 15 and 30, 2025, were changed to November 17 and December 1, 2025, respectively, so that they fall on a weekday.

report and deadline to file a motion seeking extension of scheduling deadlines have been added to the proposed schedule.

The parties are hereby **ORDERED** to follow this schedule:

Event	Deadline
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	9/15/2025
Parties to serve objections and initial responses to initial RFPs	10/15/2025
Parties to serve objections and initial responses to initial interrogatories	10/15/2025
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	10/28/2025
Substantial completion of productions of documents and ESI in response to initial RFPs	11/17/2025
Joint Status Report regarding discovery	12/01/2025
Last day to file motion for extension of scheduling deadlines	12/01/2025
Complete depositions of fact witnesses	12/15/2025
Last day to serve interrogatories, requests for admission, and RFPs	12/15/2025
Disclosure of initial expert reports, if any	12/23/2025
Disclosure of rebuttal expert reports, if any	1/06/2026

Last day to respond to interrogatories, requests for admission, and RFPs	1/12/2026
Close of fact discovery	1/12/2026
Complete expert depositions and all discovery	1/12/2026
Complainant's initial brief, proposed findings of fact, and appendix	2/11/2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	3/13/2026
Complainant's reply and responses to proposed findings of fact	3/27/2026

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically meet other deadlines in the proceeding. If a motion could impact on other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including but not limited to the requirements for briefs, appendices, and confidential information.

Any filing submitted without page numbers, including exhibits, may be rejected. Parties may be required to file any documents that do not comply with the requirements in the Initial Order.

The parties are directed at consulting with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email an electronic copy of required documents in a word-processing

format to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S
Date: 2025.09.15 10:45:54 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge